

25STCV23986 25STCV23986

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Case Number: 25STCV23986 Hearing Date: June 30, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF  
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

TERRENCE MOORE, an individual; SARAH MOORE, an individual;

Plaintiffs,

v.

ARKEMA, INC., et al.

Defendants.

Case No. 25STCV23986

Hearing Date: June 30, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

DEFENDANT NOVARTIS CORPORATION'S MOTION FOR SUMMARY  
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On August 12, 2025,  
Plaintiffs Terrence and Sarah Moore filed their  
complaint for personal injury alleging Mr. Moore developed  
mesothelioma from direct exposure to asbestos-contaminated consumer talc  
products.

On April 6, 2026, Novartis  
Corporation ("Novartis" or "Defendant") moved for summary judgment or, in the  
alternative, summary adjudication, arguing Plaintiffs lack and cannot  
reasonably obtain evidence that Mr. Moore was exposed to an asbestos-containing  
product for which Novartis was responsible.

On June 8, 2026, Plaintiffs opposed,  
requesting a continuance of the matter to allow them to take the deposition of  
Novartis's Person Most Qualified ("PMQ") and obtain information essential to  
Plaintiffs' opposition.

On June 15, 2026, Novartis replied,  
arguing a continuance is not warranted because the additional discovery would  
not cure defects identified by the motion.

The court continued the hearing on  
this matter to allow Plaintiffs to complete Novartis's PMQ deposition and file  
supplemental briefing.

On June 16, 2026, Plaintiffs filed a supplemental opposition, arguing the deposition of Novartis's PMQ revealed information raising a triable issue of material fact over whether the product at issue contained asbestos at the time Novartis's predecessor was liable for it.

On June 22, 2026, Novartis filed a supplemental reply. On the same date, Plaintiffs filed an amended supplemental opposition. On June 23, 2026, Novartis filed a further supplemental reply addressing Plaintiffs' amended supplemental opposition.

Novartis satisfies its burden to show that Plaintiffs' discovery responses give rise to the inference that they lack and cannot reasonably obtain evidence that Mr. Moore was exposed to an asbestos-containing product for which Novartis was responsible. Plaintiffs failed to meet their burden of presenting affirmative evidence sufficient to support their contention that Mr. Moore was exposed to an asbestos-containing product for which Novartis was responsible. Accordingly, the motion for summary judgment is granted. The motions for summary adjudication are moot.

## II.

### Evidentiary Objections

#### Novartis's Objections

#### Sustained

1-3. Novartis objects to the deposition testimony of the PMQ of Fisons, PLC, Sheila Chandonnet, on the grounds that the testimony is hearsay and lacks foundation. The first and third objections do not appear to be objections to any particular piece of testimony, but references portions of the deposition where Ms. Chandonnet agrees that she has no direct personal knowledge of the events at issue from before 1995; that her knowledge about Fisons is the result of review of past documents and discussions with other individuals; and her interpretation of Fisons's historical knowledge and practices, among other things. (Bergmark Decl., Exh. B at 16:12-18; 18:23-19:16; 20:19-21:7; 23:8-25:10; 26:17-29:21; 133:13-18; 182:5-183:4, 184:9-185:9.) Objection 2 is an objection to Ms. Chandonnet's statements that it is her understanding that the talc supplied to Fisons in 1991 by Cypress and Whittaker, Clark & Daniels was sourced from Montana. The

testimony at issue reads as follows:

“Q:

Which specific mine or state did Fisons source its talc from? A: My understanding is that – and I have not seen a document, so I won’t precede your question, but my understanding is that the mine for the Cypress deliveries was known to be Montana. Q: Okay. What about the Whittaker, Clark & Daniels, do you have any idea? A: I believe that’s the same.”

(Bergmark Decl., Exh. B  
at pp. 276:24-277:7.)

Unless

a witness is giving expert testimony, the “testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter. Against the objection of a party, such personal knowledge must be shown before the witness may testify concerning the matter. (Evid. Code, § 702, subd. (a).) Corporate representatives are also subject to this personal knowledge rule and are limited to testimony reflecting their personal knowledge. (LAOSD Asbestos Cases (Ramirez v. Avon Products) (2023) 87 Cal.App.5th 939 (“Ramirez”).) For example, in Ramirez, a corporate representative’s testimony was inadmissible because the events described took place before the representative began working for the corporation and the representative failed to identify a source for her information. (Id. at p.951.) Even if the representative was “channeling” information from other individuals with personal knowledge, the trial court had no way of evaluating the reliability of the representative’s information obtained from these individuals. (Id.) The documents attached to the representative’s declaration likewise failed to cure the defects with the representative’s declaration because the documents were themselves inadmissible hearsay. (Id.)

Here, Ms. Chandennet’s testimony lacks foundation because she expressly admits she did not review a document to support her assertion that the talc was sourced from Montana. Ms. Chandennet admitted that she had no personal knowledge of events which took place prior to 1995 and that all of her testimony is based on her review of Fison’s records, her interpretation of historical practices, and conversations with others. Like the testimony presented in Ramirez, there is no way for this court to verify the reliability of Ms. Chandennet’s information because she cannot point to any particular document containing this information. If Ms. Chandennet did learn the

information from her review of documents, the testimony violates the secondary evidence rule because Plaintiffs failed to submit the writings upon which Ms. Chandennet relied to make her testimony. (See Evid. Code, §§ 1521, 1523.) To the extent that the information is based on information Ms. Chandennet obtained from others, the testimony could be hearsay if Ms. Chandennet is relaying information she learned from other Fison employees because the testimony is being advanced to prove the truth that Fison sourced its' talc from Montana in the time period when it was manufacturing Desenex powder for Ciba. Accordingly, the objection to Ms. Chandennet's testimony regarding the source of Fison's talc is sustained.

#### Not Relied Upon

Novartis's supplemental objections, numbers 1-8. These objections pertain to the admissibility of the tolling agreement and Plaintiffs' expert testimony regarding asbestos contamination in Montana talc mines. These objections are not material to the court's analysis because the motion turns on whether Ms. Chandennet's testimony establishes that Fisons sourced the talc used to manufacture Desenex products for Novartis's predecessor from Montana.

#### III.

##### Discussion

##### A.

##### Legal

##### Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably

obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

#### Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where asbestos was not an intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused

product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

a.

Plaintiffs’

supplemental opposition

Plaintiffs’ original opposition requested

a continuance under Code of Civil Procedure section 437c, subdivision (h) to allow them to take the deposition of Novartis’s PMQ. (Opp. at p. 10.) Plaintiffs filed a supplemental opposition without leave of court raising new information revealed through the deposition of Novartis’s PMQ. The supplemental opposition argues that Novartis’s PMQ admitted that Fisons manufactured Desenex powder for Novartis’s predecessor, Ciba-Geigy, during the time Mr. Moore alleges he was exposed to the product using talc sourced from asbestos-contaminated mines in Montana. (Supp. Opp. at pp. 5-6.) Plaintiffs later filed an amended supplemental opposition, causing Novartis to file a supplemental reply and a further supplemental reply to address the amended supplemental opposition. For practical reasons, the supplemental oppositions and replies will be referred to collectively as the supplemental opposition and the supplemental reply.

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.” (Code Civ. Proc., § 437c, subd. (h).)

A party seeking to continue a hearing on a motion for summary judgment to complete further discovery must show that the facts to be obtained are essential to opposing the motion, that there is reason to believe these facts exist, and that additional time is needed to obtain these facts. (*Braganza v. Albertson's LLC* (2021) 67 Cal.App.5th 144, 156 .) A court properly denies the continuance where a plaintiff fails to perform meaningful discovery or was not diligent in performing discovery. (*Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1038 [“A good faith showing that further discovery is needed to oppose summary judgment requires some justification as to why this discovery was not completed sooner.”].)

Here, the court is satisfied that good cause existed for a continuance under Code of Civil Procedure section 437c, subdivision (h). Plaintiffs diligently sought the deposition of Novartis's PMQ by noticing the deposition shortly after Novartis filed the motion for summary judgment. (Bergmark Decl. at ¶15.) Although the deposition was delayed to June 2026, this delay was due to unavailability of Novartis's PMQ. (Id. at ¶16.) Information about whether Novartis was liable for the Desenex powder manufactured by Fisons on behalf of Ciba-Geigy and whether this product contained asbestos during the relevant time period is essential to Plaintiffs' opposition because Novartis contends there is no evidence that the Desenex powder from this time period contained asbestos. Accordingly, even if the supplemental opposition was filed without leave of court, good cause existed for a continuance to allow the deposition to move forward. Novartis also filed a supplemental reply addressing the additional evidence despite the delay. The court will consider the supplemental opposition and reply.

b.

Defendant's

Burden: Factually Devoid

Novartis

moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Moore was exposed to an asbestos-containing product attributable to Novartis. (Motion at pp.7-8.) Specifically, Novartis argues that Plaintiffs cannot establish that the Desenex powder Plaintiffs identified in their discovery responses contained asbestos during Novartis's ownership period. (Id. ["Here, Plaintiffs must produce evidence that Mr. Moore was exposed to an asbestos containing Desenex product during the limited period in which Novartis owned the product line— November 25, 1992 through December 1994. They have not done so."].)

Novartis relies on

Plaintiffs' responses to written discovery, Mr. Moor's deposition testimony, and the declaration of its corporate representative to support its motion. When Novartis asked Plaintiffs to state each fact "supporting [their] contention that NOVARTIS is liable to [them] for any cause of action" alleged in the complaint, Plaintiffs responded in relevant part:

"Plaintiff



TERRENCE MOORE was exposed to Defendant NOVARTIS's asbestos-containing Desenex and/or Caldesene talc-based powder products beginning in approximately the early 1980's through the late 2010's. During this period, Mr. MOORE was exposed to these products at various locations including, but not limited to, the homes where he resided in the State of California in the Counties of Los Angeles, Orange, and Alameda. Mr. MOORE purchased Defendant NOVARTIS's Desenex and/or Caldesene talc-based powder products from regional Vons and Longs retailers.

Mr. MOORE

personally used Defendant NOVARTIS's Desenex and/or Caldesene talc-based powder products as part of his regular personal hygiene routine. Mr. MOORE recalls that the Desenex product was packaged in yellow and brown canisters, and that at one point such canisters were made of metal and later during his exposure period made of plastic (Deposition of Trevor Moore at Vol. II 203:14-214:9). He applied the powders in these containers to himself as intended by Defendant NOVARTIS and as reasonably foreseeable from the perspective of a typical consumer. During the aforementioned time period, Mr. MOORE applied these products daily taking several minutes to complete his routine. Each time he applied the products, the dust and powder from these hygiene products would become airborne and he inhaled this particulate matter from these products. In this daily hygiene routine, Mr. MOORE twisted the top of the shaker containers to open the holes, inverted the containers, and shook the powder against and through the holes directly into his shoes, socks, and onto his bare feet. He used his hands to spread the powder over the tops of his feet, soles, heels, and between his toes. The design and intended use of these products caused powder to become airborne in his immediate breathing zone, where he could not reasonably avoid inhaling it. He also did his own laundry, shaking his socks completely open before placing them in the washer."

(Thacker Decl.,  
Exh. B at pp.3-5.) The responses go on to state facts about asbestos contamination in Montana talc. (Id. at pp.5-6.)

Mr. Moore testified at his deposition that his father used Desenex powder in his presence in the 1970s and 1980s. (Thacker Decl., Exh. D at 154:13-18.) Mr. Moore did not remember other details about the product packaging and did not know what ingredients were in the powder. (Id. at 210:2-211:1.) Mr. Moore did not have any information or knowledge about the source of the ingredients used in the Desenex powders or whether they were contaminated with asbestos. (Id. at 216:11-18.) Mr.

Moore did not have information about where the Desenex products were manufactured. (Id. at 217:15-17.) Mr. Moore had never spoken to any Novartis representatives and had never received any documents associated with Novartis. (Id. at 250:9-20.)

Novartis's corporate representative, Eduard Marti, declares that he is the Vice President and Treasurer of Novartis. (Marti Decl. at ¶2.) Mr. Marti declares that in November 1992, Ciba-Geigy Corporation ("Ciba") acquired the Desenex product line in an asset-purchase agreement with Fisons, PLC ("Fisons"). (Id. at ¶5.) In December 1994, Ciba transferred its entire consumer products business with associated liabilities to another subsidiary, Ciba Self-Medication, Inc. (Id. at ¶6.)

Novartis satisfies its burden to show that Plaintiffs' discovery responses are devoid of facts supporting their contention that Mr. Moore was exposed to asbestos by an asbestos-containing product for which Novartis was responsible. Plaintiffs' discovery responses were required to show that it was more likely than not that the product at issue was contaminated with asbestos at the time Mr. Moore was exposed to it. (Gibbons, *supra*, 44 Cal.App.5th at p. 489.)

Plaintiffs' interrogatory responses are insufficient to show that the Desenex powder Mr. Moore's father used in his presence was contaminated with asbestos. The responses and Mr. Moore's deposition testimony identify Desenex powder from between the 1970s and 1980s as the product at issue. (Thacker Decl., Exh. B at pp.3-5, Exh. D at 154:13-18.) However, there are no facts that the product at issue was contaminated with asbestos. Although the responses discuss the asbestos contamination in Montana talc mines at length, at no point do the responses state that Ciba, Novartis's predecessor, sourced its talc from Montana to manufacture Desenex powders during the exposure period at issue. Plaintiffs' discovery responses and deposition are devoid of facts supporting their contention that Desenex powder for which Novartis was responsible exposed Mr. Moore to asbestos. The responses give rise to an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Novartis. Accordingly, Novartis meets its burden on summary judgment. The burden shifts to Plaintiffs.

c.

Plaintiffs' Burden

Plaintiffs argue

in their supplemental opposition that a tolling agreement between Ciba and Fisons shows that Fisons agreed to continue manufacturing Desenex powder, among other things, for Ciba for two years commencing in January 1993. (Supp. Opp., Exh. C at DSX\_GSK\_00002572- DSX\_GSK\_00002573, DSX\_GSK\_00002592.) The court notes that the tolling agreement was improperly lodged conditionally under seal.[1] Plaintiffs are ordered to file the exhibit. Plaintiffs argue that Fisons sourced the talc used in the Desenex products it manufactured for Ciba was sourced from Montana talc mines contaminated with asbestos. (Supp Opp. at pp.7-8.)

Plaintiffs also

present the deposition testimony[2] of Fison's corporate representative, Sheila Chandonnet, to show that the talc Fisons used to manufacture Desenex powders between 1993 and 1995 were sourced from Montana. (Plaintiffs' response to UMF No. 30, Bergmark Opp. Decl., Exh. B at 276:24-277:7.) However, as discussed, the court sustained Novartis's objections to this testimony.

The court

continued this matter to allow Plaintiffs to depose Novartis's PMQ, Mr. Marti, to discover information about whether the Desenex products manufactured on Ciba's behalf during the time period at issue contained asbestos. Mr. Marti admitted he had no direct personal knowledge of Novartis's talc business before 1995. (Bergmark Supp. Decl., Exh. D at 12:4-13:12.) Mr. Marti agreed, after reviewing the tolling agreement between Ciba and Fisons, that he would defer to Fisons regarding information about where Fisons sourced the talc incorporated into Desenex products it manufactured for Ciba under the tolling agreement. (Id. at 140:10-18.)

Plaintiffs fail to

meet their burden of presenting affirmative evidence to support their contention that the Desenex products sold by Ciba in 1992-1994 contained asbestos. Plaintiffs' only evidence that Fisons sourced its talc from Montana during the period when Fisons manufactured Desenex products for Novartis's predecessor is Ms. Chandennet's testimony. However, the court sustained Novartis's objections to this testimony because Ms. Chandennet lacked personal knowledge to testify to this fact and because the testimony was hearsay or violated the secondary evidence rule. Mr. Marti offered no other testimony establishing

where Fisons sourced its talc during the time period at issue. Thus, there is no evidence in the discovery record showing that the products Fisons manufactured on behalf of Novartis's predecessor came from asbestos-contaminated Montana talc mines. Consequently, there is no evidence that the Desenex powders manufactured between 1992 and 1994 when Novartis's predecessor owned the brand contained asbestos.

The parties also dispute in the supplemental opposition and reply over whether Ms. Chandennet's testimony regarding the Fisons talc source is admissible as a party admission under Evidence Code, section 1222, which provides that a statement is not inadmissible as hearsay if (a) the statement was made by a person authorized by the party to make a statement or statements for him concerning the subject matter of the statement and (b) the evidence is offered either after admission of evidence sufficient to sustain a finding of such authority or, in the court's discretion as to the order of proof, subject to the admission of such evidence. Here, as Novartis points out in its supplemental reply, Ms. Chandennet's deposition was taken before Mr. Marti's. Mr. Marti could not have authorized Ms. Chandennet to make statements on behalf of Novartis by statements made in a deposition taken after Ms. Chandennet had already made the statements at issue. Even if the testimony was not rendered inadmissible by the rule against hearsay by Evidence Code, section 1222, the testimony is still inadmissible because Ms. Chandennet lacked personal knowledge to testify as to the source of Fisons's talc during the time period at issue.

#### Plaintiffs

failed to present affirmative evidence supporting their contention that Mr. Moore was exposed to asbestos by an asbestos-contaminated product for which Novartis was responsible. Accordingly, Novartis's motion for summary judgment is granted.

#### IV.

#### Conclusion

Novartis satisfies its burden to show that Plaintiffs' discovery responses give rise to the inference that they lack and cannot reasonably obtain evidence that Mr. Moore was exposed to an asbestos-containing product for which Novartis was responsible. Plaintiffs failed to meet their burden of presenting affirmative evidence sufficient to support their contention that Mr. Moore was exposed to an asbestos-containing product for

which Novartis was responsible. Accordingly, the motion for summary judgment is granted. The motions for summary adjudication are moot.

Novartis to give notice.

[1]

The tolling agreement was lodged as Exhibit C to Plaintiffs' supplemental opposition in violation of California Rules of Court, rule 2.551(b)(1), which requires a motion to seal to be filed before filing a record under seal. Additionally, Plaintiffs failed to file a redacted version of the record as required by California Rules of Court, rule 2.551(b)(3)(A)(ii). Because Plaintiffs failed to follow the correct procedure to seal the records at issue, the records are not sealed and should be properly filed as part of the public record.

[2] Plaintiffs filed the evidence

supporting their opposition together with the opposition memorandum in violation of California Rules of Court, rule 3.1350(g), which provides that evidence supporting a motion for summary judgment or opposition to the motion exceeding 25 pages must be separately bound and include a table of contents. Here, the exhibits supporting the opposition exceed 25 pages and should have been separately bound with a table of contents.